

		<u>Public Policy</u> Plaintiff contends that the Award cannot be enforced because Defendant’s employment contract contravenes public policy through its Transfer Policy. As discussed above, the Arbitrator found that Defendant was not enforcing that policy because it was looking for a Scheduler position for Plaintiff. Therefore, enforcing the Award does not contravene public policy; it does not enforce the allegedly unlawful policy. Plaintiff also contends that the Award should not be confirmed because it creates an appearance of impropriety. Plaintiff argues that the Armendariz rule—that an employer must pay all arbitration fees in a FEHA dispute with an employee—conflicts with the canons of judicial ethics because because of this appearance of impropriety. (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 113.) Plaintiff has not submitted any evidence that she objected in any way to proceeding before the Arbitrator under the terms of the employment agreement, which are consistent with <i>Armendariz</i>. In fact, Plaintiff did not even oppose the motion to compel arbitration and instead filed a notice of non-opposition. (ROA 22.) Plaintiff’s non-opposition was filed more than two years ago. To allow a party to proceed with arbitration all the way through its final conclusion before raising an argument that the entire proceeding was improper would operate to undermine the entire arbitration process. Plaintiff waived this argument by failing to raise it at any prior time. Accordingly, based on the foregoing, Plaintiff’s petition to vacate the award is DENIED. <u>Petition to Confirm</u> If a petition to confirm an arbitration award “is duly served and filed, the court shall confirm the award as made . . . unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceedings.” (CCP § 1286.) There is no dispute about the proper filing and service of Defendant’s petition to confirm. Plaintiff’s petition to vacate has been denied. There is no request to otherwise correct or dismiss the award. As a result, the petition to confirm the award is GRANTED. Defendant to give notice of both rulings.
11.	30-2023-01367697 Seifpoor vs. Goldberg	Motion for Summary Judgment and/or Adjudication Plaintiffs Mahnaz Seifpoor and Karim Ashkpoor allege two causes of action against moving Defendant Glenn I. Goldberg, D.O.: (1) professional negligence and (2) loss of consortium. Defendant moves for summary judgment as to both causes of action. The elements of a cause of action for professional negligence (medical malpractice) are: “(1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (<i>Lattimore v. Dickey</i> (2015) 239 Cal.App.4th 959, 968.)

“The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony.” (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606–607, as modified (Nov. 29, 1999).) “[E]xpert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen.” (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741.) In fact, “California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases.” (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607, as modified (Nov. 29, 1999).)

“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (*Hanson*, supra, 76 Cal.App.4th at 606-607; *Webster v. Claremont Yoga* (2018) 26 Cal.App.5th 284, 289.)

An expert’s opinion must be based on authenticated hospital records. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) “Without those hospital records, and without testimony providing for authentication of such records, [the expert’s] declaration had no evidentiary basis” and therefore “no evidentiary value.” (*Garibay*, supra, 161 Cal.App.4th at 742.) “[E]xpert opinions ... are worth no more than the reasons and factual data upon which they are based.” (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607.)

“A properly qualified expert may offer an opinion relating to a subject that is beyond common experience, if that expert’s opinion will assist the trier of fact.” (*Garibay*, supra, at 742–743 [citing Evid. Code, § 801, subd. (a)].) “Even so, the expert opinion may not be based on assumptions of fact that are without evidentiary support or based on factors that are speculative or conjectural, for then the opinion has no evidentiary value and does not assist the trier of fact.” (*Ibid.*)

Still, expert declarations need not be “a model of specificity” in order “to raise a triable issue of fact.” (*Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 506.)

Here, Plaintiffs allege that, on December 8, 2022, Defendant treated Plaintiff Mahnaz Seifpoor to “remove skin lesions above her right eyelid using two injections including Lidocaine.” Plaintiff alleges that Defendant’s below standard treatment “resulted in severe pain, numbness on the right side of her face, dizziness, headaches, and twitching in her right upper eyelid.”

Defendant carried his initial burden to establish that his conduct fell within the community standard of care and did not cause the injuries Plaintiff alleges. Defendant proffered expert testimony from (1) Patrice Healey, M.D., who is a board-certified dermatologist, and (2) Benjamin Frishberg, M.D., who is board-certified Neurologist. Both doctors opined that the treatment rendered to Plaintiff by Defendant fully complied with the applicable standard of care and that no act or omission by Defendants caused or contributed to Plaintiff’s alleged injuries.

However, Plaintiffs filed competing expert declarations wherein Plaintiffs' experts (1) Kenneth Martinez, M.D., a board certified neurologist, and (2) Stuart Shear, M.D., a board-certified dermatologist, created triable issues of material fact. Dr. Shear presented conflicting evidence and opined that Defendant's conduct fell below the community standard of care and was a substantial factor in causing Plaintiff's injuries. As such, there are triable issues of material fact as to Plaintiff's claims.

In the reply, Defendant argues that Plaintiff did not properly authenticate the medical records on which her experts relied because "[m]edical records are properly authenticated as the hospital's business records when they are provided with the declaration of the hospital's custodian of records." (*Wicks v. Antelope Valley Healthcare Dist.* (2020) 49 Cal. App. 5th 866, 876.) Importantly, however, a party opposing summary judgment is not required to file duplicate copies of the medical records on which the opposing expert relied in forming a disputed expert opinion if they are already before the court in support of the motion. (See *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 506.)

Here, Plaintiff's expert Stuart Shear, M.D. relies on the evidence submitted by Defendant and therefore a significant portion of Plaintiff's medical history under Defendant's care is already before the Court. Plaintiff's expert also reference Plaintiff's full medical history under Defendant's care, which Plaintiff's counsel testified is contained in the medical records that Defendant produced in discovery. The medical records produced by Defendant in support of his motion for summary judgment and those additional records produced by Plaintiff contain the same bates stamp label and business header, supporting Plaintiff's contention that such records were produced by Defendant during discovery. "Documents obtained in discovery in response to a request for production of documents may be used to support or oppose a motion for summary judgment, but must be presented in admissible form." (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 855.) "This means the evidence must be (1) properly identified and authenticated, (2) admissible under the secondary evidence rule, (3) nonhearsay or admissible under some exception to the hearsay rule, and (4) a complete record, not selected portions of the document." (*Ibid.*) Accordingly, the Court finds that there is sufficient evidence to find that the medical records are those "that the proponent of the evidence claims" them to be such that they are sufficiently authenticated and admissible. (Evid. Code, §§ 1271 and 1400.) Thus, the Court is not persuaded by Defendant's attempt to discredit Plaintiffs' expert declarations.

The Motion for Summary Judgment is **DENIED** in its entirety.

Defendant's objections are **OVERRULED**. The Court finds that there are triable issues of material fact. The Dr. Shear declaration alone creates triable issues of material fact regarding the standard of care and causation and, as discussed above, the court finds that the medical records discussed in the Dr. Shear declaration are sufficiently authenticated.

Plaintiff to give notice.